

Falmouth Docks Act, 1958

6 & 7 ELIZ. 2 Ch. xliii

ARRANGEMENT OF SECTIONS

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CHAPTER xliii

An Act to authorise the raising of additional capital
by the Falmouth Docks and Engineering Company
and for other purposes. [1st August 1958.]

WHEREAS—

(1) By the Falmouth Docks Acts 1859 to 1954 the Falmouth Docks and Engineering Company (hereinafter called “the Company”) were incorporated and authorised to construct and maintain a tidal harbour and certain docks and other works at and in the neighbourhood of Falmouth in the county of Cornwall and to exercise various other powers:

(2) In order to accommodate the very large tankers built in recent years and now being built and to improve and increase the present facilities for ships at Falmouth Docks and particularly for the repair of ships the Company are in process of enlarging under their existing powers the graving dock authorised by the Falmouth Docks Act 1874 and known as their No. 2 Graving Dock:

(3) The share capital of the Company as authorised by the Falmouth Docks Act 1919 and the Falmouth Docks Act 1921 consists of one million six hundred and fifty thousand pounds all of which has been issued and is divided into one million three hundred and fifty-one thousand one hundred and seventy-nine ordinary shares of one pound each and two hundred and ninety-eight thousand eight hundred and twenty-one preference shares of one pound each but the Company have not borrowed any money on mortgage or by the creation and issue of debenture stock:

(4) It is expedient that the Company should be empowered to raise additional capital for the purposes aforesaid and for the further development of their dock undertaking and to raise further money by borrowing or by the creation and issue of debenture stock:

(5) It is expedient that the other provisions in this Act contained be enacted:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Falmouth Docks Act 1958.

(2) The Falmouth Docks Acts 1859 to 1954 and this Act may be cited as the Falmouth Docks Acts 1859 to 1958.

Incorporation
of Acts.

2. The following enactments so far as the same are applicable to the purposes and are not inconsistent with the provisions of the Falmouth Docks Acts 1859 to 1958 are hereby incorporated with this Act (namely):—

(a) The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital):

Provided that—

(i) section 11 of the said Act of 1845 shall have effect as if the words “ Except as otherwise provided by the conditions of issue thereof ” were inserted at the beginning of that section;

(ii) section 15 of the said Act of 1845 shall have effect as if for the words “ on demand ” there were substituted the words “ within two months after delivery thereof ”;

(b) The Companies Clauses Act 1863 (except sections 17 to 21 and Part IV thereof):

Provided that—

(i) section 14 of the said Act of 1863 shall have effect as if the words “ but if in any year ” to the end of the section were omitted; and

(ii) section 22 of the said Act of 1863 shall have effect as if the words “ and to the same amount as ” were omitted therefrom.

3.—(1) In this Act the following words and expressions have Interpretation. the several meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):—

“ the Act of 1919 ” means the Falmouth Docks Act 1919;

“ the Act of 1921 ” means the Falmouth Docks Act 1921;

“ the Company ” means the Falmouth Docks and Engineering Company;

“ the directors ” means the directors for the time being of the Company;

“ enactment ” means any provision of a public general Act of a local private or personal Act of a Provisional Order confirmed by an Act or of any regulation or order made under an Act;

“ the undertaking ” means the undertaking of the Company as for the time being authorised.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

4.—(1) The Company may from time to time raise additional Additional capital not exceeding in the whole one million eight hundred and fifty thousand pounds (in addition to the capital authorised by the Act of 1919 and the Act of 1921) by the creation and issue of ordinary shares or preference shares or wholly or partly by one or more of those modes.

(2) It shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of share capital than shall be sufficient to produce (including any premiums and allowing for any discounts which may be obtained or allowed on the issue thereof) the amount of one million eight hundred and fifty thousand pounds.

5. The additional share capital authorised by section 4 Additional (Additional capital) of this Act shall form part of the general share capital of the Company and save as is otherwise expressly provided by the terms of issue thereof the holders thereof to be part of general capital. respectively in proportion to the amount of their shares shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents in all respects as holders of share capital of the Company of the same class or description.

6. Any share capital created after the passing of this Act may Issue of new subject to the terms of the resolution by which it was created be capital. issued at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company.

Power to
borrow.

7.—(1) The Company may without obtaining a certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845 raise for the purposes of the undertaking either by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock or by both of those modes or partly by one and partly by the other any additional sum or sums of money not exceeding in the whole one-half of the amount actually paid up on any ordinary or preference shares which at the time of borrowing have been issued under the powers of this Act.

(2) The powers conferred by this section shall be without prejudice to the right of the Company to reborrow from time to time any amounts which having been raised by borrowing on mortgage or by the creation and issue of redeemable debenture stock are thereafter paid off.

Incorporation
of provisions
of Acts of
1919 and
1921.

8. The following enactments so far as they are applicable to the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act and shall extend ~~and apply to and for the purposes of this Act as fully and effectually~~ as if such provisions had been re-enacted with any necessary modifications in this Act (namely):—

Act of 1919—

Section 44 (Dividend on preference shares);

Section 48 (Priority of mortgages and debenture stock over other debts);

Section 52 (Receipt in case of persons not sui juris):

Act of 1921—

Section 28 (Debenture stock);

Subsection (2) of section 29 (Appointment of receiver).

Application
of money.

9. All money raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of share capital under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Saving for
powers of
Treasury.

10. It shall not be lawful to exercise the powers of borrowing or raising capital conferred by this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Costs of Act.

11. All costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Table of Statutes referred to in this Act

Short title	Session and chapter
Companies Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 16.
Companies Clauses Act 1863	26 & 27 Vict. c. 118.
Falmouth Docks Act 1874	37 & 38 Vict. c. clxxviii.
Falmouth Docks Act 1919	9 & 10 Geo. 5 c. xxxvii.
Falmouth Docks Act 1921	11 & 12 Geo. 5 c. xxiii.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.

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British Transport Commission Order Confirmation Act, 1958

6 & 7 ELIZ. 2 Ch. xxviii

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

BRITISH TRANSPORT COMMISSION

1. Short and collective titles.
2. Interpretation.
3. Incorporation of general Acts.
4. Power to make works.
5. Use of sewers etc. for removing water.
6. Period for completion of railway.
7. Power to acquire lands.
8. Acquisition of part only of certain properties.
9. Disregard of recent improvements and interests.
10. Period for compulsory purchase of lands.
11. Incorporation of provisions of Orders of 1948 1951 and 1953.
12. Repeals.
13. Saving for town and country planning.
14. Arbitration.
15. Costs of Order.

SCHEDULES :

First Schedule—Lands referred to in subsection (2) of section 7 (Power to acquire lands) of this Order.

Second Schedule—Describing properties whereof portions only may be taken compulsorily.

Third Schedule—Enactments repealed by this Order.



CHAPTER xxviii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the British Transport Commission. [23rd July 1958.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the British Transport Commission Order Confirmation Act 1958.

SCHEDULE

BRITISH TRANSPORT COMMISSION

Provisional Order to empower the British Transport Commission to construct works and to acquire lands to confer further powers on the Commission and for other purposes.

WHEREAS by the Transport Act 1947 the British Transport Commission (hereinafter referred to as "the Commission") were established:

And whereas it is the duty of the Commission under the Transport Act 1947 as amended by the Transport Act 1953 (inter alia) to provide railway services for Great Britain due regard being had to efficiency economy and safety of operation and to the needs of the public agriculture commerce and industry:

And whereas it is expedient that the Commission should be empowered to construct the works authorised by this Order and to acquire the lands referred to in this Order:

And whereas it is expedient that the other powers contained in this Order should be conferred upon the Commission:

And whereas plans and sections showing the lines and levels of the works to be constructed under the powers of this Order and plans of the lands authorised to be acquired by this Order and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the sheriff clerk of each county within which the said works will be constructed and the said lands are situated which plans sections and book of reference are respectively referred to in this Order as "the deposited plans" "the deposited sections" and "the deposited book of reference":

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short and
collective titles.

1.—(1) This Order may be cited as the British Transport Commission Order 1958.

(2) The British Transport Commission Orders 1948 to 1957 and this Order may be cited together as the British Transport Commission Orders 1948 to 1958.

Interpretation.

2.—(1) In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—

"the Act of 1845" means the Railways Clauses Consolidation (Scotland) Act 1845;

- “ the Commission ” means the British Transport Commission;
- “ enactment ” includes any public general local or private Act and any order or other instrument having the force of an Act;
- “ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 as such last-mentioned Act is amended by the Acquisition of Land (Assessment of Compensation) (Scotland) Act 1931 the Town and Country Planning (Scotland) Act 1947 the Lands Tribunal Act 1949 and the Town and Country Planning (Scotland) Act 1954;
- “ the limits of deviation ” means the limits of deviation shown on the deposited plans;
- “ the Order of 1948 ” means the British Transport Commission Order 1948;
- “ the Order of 1951 ” means the British Transport Commission Order 1951;
- “ the Order of 1953 ” means the British Transport Commission Order 1953;
- “ the tribunal ” means the Lands Tribunal for Scotland;
- “ the works ” means the works authorised by this Order.

(2) Any reference in this Order to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Order.

(3) All distances and lengths stated in any description of works powers or lands shall be construed as if the words “ or thereby ” were inserted after each such distance and length and distances between points on a railway shall be taken to be measured along the railway.

(4) Unless the context otherwise requires any reference in this Order to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Order.

(5) Until sections 1 to 3 of the Lands Tribunal Act 1949 come into force as regards Scotland “ the tribunal ” shall be construed as meaning an official arbiter appointed under the Acquisition of Land (Assessment of Compensation) Act 1919 and sections 3 5 and 6 of the last-mentioned Act shall apply subject to the necessary modifications in relation to the determination of any question under this Order by an arbiter so appointed.

3. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Order are incorporated with and form part of this Order and this Order shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

Incorporation
of general
Acts.

The Lands Clauses Acts except sections 120 to 124 and section 127 of the Lands Clauses Consolidation (Scotland) Act 1845;

The Act of 1845 except sections 7 8 9 19 20 22 and 23 thereof and Part I (relating to construction of a railway) of the Railways Clauses Act 1863:

Provided that—

- (a) for the purposes of this Order the expression “ the company ” where used in the incorporated provisions of the Act of 1845 and the said Act of 1863 means the Commission;
- (b) for the purposes of sections 16 and 25 to 37 of the Act of 1845 as incorporated with this Order Works Nos. 2 to 11 shall be deemed to be railways authorised by the special Act;
- (c) the provisions of sections 18 to 21 of the Act of 1845 shall not extend to regulate the relations between the Commission and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—
 - (i) by the provisions of Part II of the Public Utilities Street Works Act 1950; or
 - (ii) by the provisions of section 14 (For protection of gas water and electricity undertakers) of the Order of 1953 as incorporated with this Order.

Power to
make works.

4.—(1) Subject to the provisions of this Order the Commission may in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In the county of Dunbarton—

Work No. 1 A railway (343 yards in length) wholly in the district and parish of Old Kilpatrick commencing by a junction with the Lanarkshire and Dumbartonshire Railway 370 yards west of the bridge carrying Dumbarton Road over the said railway and terminating by a junction with the Glasgow Dumbarton and Helensburgh Railway 60 yards west of the bridge carrying the private road from Dumbarton Road to the Esso Petroleum Depot over the last-mentioned railway.

Work No. 2 A raising and reconstruction of the bridge in the burgh of Helensburgh and parish of Rhu carrying Charlotte Street over the Glasgow Dumbarton and Helensburgh Railway.

Work No. 3 A raising and reconstruction of the bridge partly in the burgh of Helensburgh and parish of Rhu and partly in the district of Helensburgh and parish of Cardross carrying Cardross Road over the Glasgow Dumbarton and Helensburgh Railway.

Work No. 4 A raising and reconstruction of the bridge in the district of Vale of Leven and parish of Bonhill carrying Main Street over the Balloch Branch Railway.

Work No. 5 A raising and reconstruction of the bridge in the burgh of Dumbarton and parish of Cardross carrying Renton Road over the Glasgow Dumbarton and Helensburgh Railway.

In the county of Lanark—

Work No. 6 A raising and reconstruction of the bridge in the county of the city of Glasgow and parish of Renfrew carrying Dyke Road over the Glasgow Yoker and Clydebank Railway.

In the county of Dunbarton—

Work No. 7 A raising and reconstruction of the bridge in the burgh of Clydebank and parish of Old Kilpatrick carrying Mill Road over the Glasgow Yoker and Clydebank Railway.

In the county of Lanark—

Work No. 8 A raising and reconstruction of the bridge in the city county and parish of Glasgow carrying St. Vincent Crescent over the Glasgow City and District Railway.

Work No. 9 A raising and reconstruction of the bridge in the Lanark ninth district and parish of Glasgow carrying Hallhill Road over the Glasgow Coatbridge and Airdrie Railway.

Work No. 10 A raising and reconstruction of the bridge in the burgh of Airdrie and parish of New Monkland carrying Gartlea Road over the Glasgow Coatbridge and Airdrie Railway.

Work No. 11 A raising and reconstruction of the bridge in the burgh of Coatbridge and parish of Old Monkland carrying Cornhill Drive over the Glasgow Coatbridge and Airdrie Railway.

(2) Subject to the provisions of this Order and within the limits of deviation the Commission may in carrying out Works Nos. 2 to 11 make such junctions with and may alter the line or level of any street or way interfered with by or contiguous to the said works and may alter and interfere with any steps walls gateways railings passages pipes and pavements and they may execute any works for the protection of any adjoining land or building.

5.—(1) The Commission may use for the discharge of any water pumped or found by them during the construction of the works any available stream or watercourse or any sewer or drain of any local authority in or through whose area the works may be constructed or pass and for that purpose may lay down take up and alter conduits pipes and other works and make any convenient connections with any such stream watercourse sewer or drain within the limits of deviation:

Use of sewers
etc. for
removing water.

Provided that—

- (a) the Commission shall not discharge any water into any sewer or drain vested in or under the control of a local authority except with the consent of the local authority and subject to such terms and conditions (including the taking of steps to remove so far as may be reasonably practicable from water so discharged any gravel soil or other solid substance or matter in suspension) as the local authority may reasonably impose; and
- (b) the Commission shall not make any opening into any such sewer or drain save in accordance with plans approved by and under the superintendence (if given) of the local authority in whom the sewer or drain shall be vested.

(2) Any difference arising between the Commission and a local authority under this section shall be settled by arbitration.

(3) In this section the expression "local authority" has the meaning assigned to it by section 379 of the Local Government (Scotland) Act 1947.

Period for
completion of
railway.

6. If Work No. 1 is not completed within the period expiring on the thirty-first day of December nineteen hundred and sixty-four then on the expiration of that period the powers granted by this Order to the Commission for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as has then been completed.

Power to
acquire lands.

7.—(1) Subject to the provisions of this Order the Commission may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

(2) Without prejudice to the generality of the powers conferred upon the Commission by subsection (1) of this section the Commission may subject to the provisions of this Order enter upon take and use for the purposes specified in the third column of the First Schedule to this Order all or any of the lands referred to in the first and second columns of the said schedule.

(3) Subject to the provisions of this Order the Commission may enter upon use and appropriate so much of the subsoil and under-surface of any public street road footpath or place delineated on the deposited plans and described in the deposited book of reference as may be necessary for the purposes of the works without being required to purchase the same or any servitude therein or thereunder or to make any payment therefor.

Acquisition of
part only
of certain
properties.

8.—(1) Whereas in the construction of the works or otherwise in the exercise by the Commission of the powers of this Order it may happen that portions only of the properties whereof the whole or part is described in the Second Schedule to this Order will be sufficient for the purposes of the Commission and that such portions or some other portions less than the whole can be severed from the remainder of the said properties respectively without material detriment thereto Therefore the following provisions shall have effect:—

(a) The owner of and persons interested in any of the said properties whereof a portion only is required for the purposes of the Commission or each or any of them are or is hereinafter in this section included in the term "the owner";

(b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the said properties the owner fails to notify the Commission in writing that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Commission such

portion only without the Commission being obliged or compellable to purchase the whole the Commission paying for the portion so taken and making compensation for any loss sustained by the owner by severance or otherwise;

- (c) If within such twenty-one days the owner alleges by notice in writing to the Commission that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion that may be acquired compulsorily under this Order) can be so severed;
- (d) If the tribunal determine that the portion of the property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Commission the portion which the tribunal has determined to be so severable without the Commission being obliged or compellable to purchase the whole the Commission paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal;
- (e) If the tribunal determine that the portion of the property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section or such part (if any) of the said costs charges and expenses as it thinks fit shall be borne and paid by the owner;
- (f) If the tribunal determine that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it determines that any other portion can be so severed) the Commission may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice;
- (g) If the tribunal determine that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Commission if they do not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal thinks fit having regard to the circumstances of the case and its final determination.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation (Scotland) Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that the said properties or any of them or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice to treat served under this Order in respect of any portion of the said properties.

Disregard of
recent
improvements
and interests.

9. In determining any question of disputed compensation or purchase money in respect of land acquired under this Order the tribunal shall not take into account—

- (a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and fifty-seven; or
- (b) any interest in the land created after the said date;

which in the opinion of the tribunal was made erected or created with a view to obtaining or increasing the compensation or purchase money.

Period for
compulsory
purchase of
lands.

10. The powers of the Commission for the compulsory purchase of the lands which they are authorised to acquire by section 7 (Power to acquire lands) of this Order shall cease on the thirty-first day of December nineteen hundred and sixty-one.

Incorporation
of provisions of
Orders of 1948
1951 and 1953.

11. The following provisions of the undermentioned Orders are incorporated with and form part of this Order:—

~~The Order of 1948—~~

Section 13 (Power to acquire servitudes compulsorily in certain cases);

Section 21 (Provision as to repair of roads and footpaths);

Section 22 (Power to make agreements with road authorities);

Section 24 (As to minerals under and near to lands to be acquired).

The Order of 1951—

Section 9 (Extinction of private rights of way);

Section 11 (Grant of servitudes by persons under disability);

Section 12 (Power to enter for survey and valuation);

Section 13 (Power to expedite entry);

Section 14 (Correction of errors in deposited plans and book of reference).

The Order of 1953—

Section 6 (Power to deviate);

Section 14 (For protection of gas water and electricity undertakers);

Section 15 (For protection of Postmaster-General).

12. The enactments specified in the Third Schedule to this Order are hereby repealed to the extent specified in the third column of that schedule. Repeals.

13. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning (Scotland) Act 1947 for the purposes of subsection (4) of section 11 and subsection (1) of section 112 of that Act. Saving for town and country planning.

14. Where under this Order any difference (other than a difference to which the provisions of the Lands Clauses Acts apply) is to be referred to or settled by arbitration then unless otherwise provided such difference shall be referred to and settled by a single arbiter to be agreed between the parties or failing agreement to be appointed on the application of either party (after notice in writing to the other) by the sheriff of the county in which the works or lands to which the difference relates are situated. Arbitration.

15. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Commission and may in whole or in part be defrayed out of revenue. Costs of Order.

Section 7.

SCHEDULES
FIRST SCHEDULELANDS REFERRED TO IN SUBSECTION (2) OF SECTION 7 (POWER TO
ACQUIRE LANDS) OF THIS ORDER

Area (1)	No. on deposited plans (2)	Purpose for which the lands may be used (3)
In the county of Dunbarton— In the burgh of Helensburgh and parish of Rhu	10 to 15	To extend the slopes of the approaches to the bridge carrying Henry Bell Street over the Glasgow Dumbarton and Helensburgh Railway.
In the burgh of Dumbarton and parish of Cardross	10a, 11 and 12	To provide new approaches to the bridge carrying the private road from Renton Road to Dalreoch Mains Farm over the Balloch Branch Railway.

Section 8.

SECOND SCHEDULE

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY BE TAKEN
COMPULSORILY

Area (1)	No. on deposited plans (2)
Burgh of Helensburgh	WORK No. 2 2, 8, 9.
Burgh of Helensburgh	WORK No. 3 18, 21, 22.
Parish of Cardross	2.
Parish of Bonhill	WORK No. 4 3 to 6.
Burgh of Dumbarton	WORK No. 5 7, 9.
Parish of Renfrew	WORK No. 6 5.
Burgh of Clydebank	WORK No. 7 10.
Parish of Glasgow	WORK No. 8 4, 6, 7.
Burgh of Airdrie	WORK No. 10 5.
Burgh of Coatbridge	WORK No. 11 2.
ADDITIONAL LANDS AT HELENSBURGH	
Burgh of Helensburgh	10 to 15.

THIRD SCHEDULE

Section 12.

ENACTMENTS REPEALED BY THIS ORDER

Session and chapter (1)	Short title (2)	Extent of repeal (3)
18 & 19 Vict. c. cxc	Glasgow Dumbarton and Helensburgh Railway Act 1855	In section XXXII (Company to construct certain bridges at Helensburgh) the words “and the approaches thereto shall not be steeper than one in fifteen nor less steep than one in twenty” so far as they relate to the bridge carrying Charlotte Street over the railway authorised by the Act.
45 & 46 Vict. c. ccxvi	Glasgow City and District Railway Act 1882	In section 43 (Construction of bridge at East St. Vincent Crescent) the words “and without altering the line or levels of the said street”.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation (Scotland) Act 1845	8 & 9 Vict. c. 19.
Railways Clauses Consolidation (Scotland) Act 1845	8 & 9 Vict. c. 33.
Glasgow Dumbarton and Helensburgh Railway Act 1855	18 & 19 Vict. c. cxc.
Railways Clauses Act 1863	26 & 27 Vict. c. 92.
Glasgow City and District Railway Act 1882	45 & 46 Vict. c. ccxvi.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Acquisition of Land (Assessment of Compensation) (Scotland) Act 1931	21 & 22 Geo. 5 c. 11.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8 c. 52.
Local Government (Scotland) Act 1947 ...	10 & 11 Geo. 6 c. 43.
Transport Act 1947	10 & 11 Geo. 6 c. 49.
Town and Country Planning (Scotland) Act 1947	10 & 11 Geo. 6 c. 53.
Lands Tribunal Act 1949	12 13 & 14 Geo. 6 c. 42.
Public Utilities Street Works Act 1950 ...	14 Geo. 6 c. 39.
Transport Act 1953	1 & 2 Eliz. 2 c. 13.
Town and Country Planning (Scotland) Act 1954	2 & 3 Eliz. 2 c. 73.

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